

V. P. SINGHAL & Co.

Insurance Surveyors and Loss Assessors (P) Ltd.

Fire | Engineering | Marine Cargo | Motor | LOP | Miscellaneous

Regd Office: 36, New Pragatisheel CGHS, Dallupura, Mayur Vihar – III, New Delhi – 110096

Office: C – 56, Basement, Sector 8, NOIDA – UP 201301

Associates

Arbitrators

Approved Valuers

Chartered Engineers

Chartered Accountants

IT & Computer Engineers

Civil & Structural Engineers

Valuation of Assets and Scraps

Electronic & Electrical Engineers

Forensics, Investigations & Verifications



SLA	72517 Validity 23.04.2026
Non Motor	office@vpsinghal.com
Claims	9811047785
Landline	0120 – 4350883
Motor Claims	Motor.vpsac@gmail.com 9810111359
CIN	U74140DL2008PTC184002
GSTN	09AACC8440J1ZY (UP), 07AACC8440J1Z2 (Delhi)

PAN INDIA OPERATIONS including Nepal, Bhutan, Bangladesh

ALL KINDS OF ASSIGNMENTS ACCEPTED

Ref. No: VP/M/23/04/005

Date: 07/12/2023

Satender Sharma

To,

The New India Assurance Company Limited

RO-III, Mumbai.

MARINE (Cargo) SURVEY REPORT

Sub: Transit losses to the consignment of Voltas water chiller machine vide Invoice

No. I22241036920 dated 22/03/2023, GR No. 3963 dated 22/03/2023

Ex- Waghodia (GJ) to Khamaria (MP)

A/C: Voltas Limited

Issued without prejudice and subject to terms and conditions of Insurance policy

1	PRELIMINARY DETAIL	
a	Insurers	: The New India Assurance Company Limited, RO-III, Mumbai
b	Claim No	: -
c	Insured's Ref. No	: Invoice No. I22241036920 dated 22/03/2023
d	Insured	: M/s. Voltas Limited.
e	Consignee	: Billed to M/s. Aarham Engineers Pvt. Ltd., Kalkaji, New Delhi. Shipped to M/s. Munitions India Ltd., Khamaria (MP).
f	Applicant for Survey	: M/s. Voltas Limited
g	Consignor	: M/s. Voltas Limited, Waghodia (GJ)

2	DETAIL OF INSURANCE	
a	Inland Policy Detail	: Marine Cargo Annual Turn Over Policy no. 12020021220500000003 Validity : 01/04/2022 to 31/03/2023 Journey from anywhere in World to anywhere in India/World Mode of transit : Rail/ Road/Air/Vessel/Registered Post Parcel/Country Craft/Others Basis of Valuation : CIF +10% Total sum insured : Rs. 30,00,00,00,000/- Limit per transit :Rs. 10,00,00,000/- Limit per Location :Rs. 20,00,00,000/- Commodity Description: All goods related to Voltas (Like1) Refrigerators (Frost Free & Direct Cool) 2) Washing Machine (Automatic, Semi-Automatic, Front Load ETC.) 3) Dishwashers. 4) Microwave. 5) Laptops Risk : ICC-Air & War & SRCC, ITC-A & SRCC, ICC-A & War & SRCC Excess : 0.5% of consignment value subject to minimum of Rs. 7500/-

			Co-Insurance Details			
			Company	Office Code	% of Share	Share (Rs.)
			NIAC	C.D.U.II	80	7200000
			TATA AIG GIC	Tag_050009 _HO_Marine	20	1800000
3	DETAILS OF CONSIGNMENT					
a	Details of consignment & total no of packages:					
	Invoice No. I22241036920 Dated 22/03/2023					
	Sr. No	Description of goods	Qty (Unit)	Rate (per item)	Amount Rs.	
	1	ACWCDS039IPMN3XIP-CHP Model: ACWCDS039IPMN3XIP	3	6,75,000.00	Rs.	20,25,000.00
		Total	3		Rs.	20,25,000.00
		Add: IGST @ 18%			Rs.	3,64,500.00
		Total Invoice Amount			Rs.	23,89,500.00
b	Invoice particulars and sound arrived value of consignment		:	As above		
c	Mode of Packing		:	Consignment was wrapped with polythene and further kept in the truck. Standard and customary packing.		
d	Distinguishing Marks & No		:	Brand name, Serial No. etc.		
e	Other Information (If Any)		:	None		
4	ATTRIBUTED CAUSE AND NATURE OF DAMAGES					
	Loss occurred during transit from Waghodia (GJ) to Khamaria (MP) due Jerks and Jolts. Reportedly the consignment was dispatched from Waghodia (GJ) to Khamaria (MP) through vehicle no. GJ23X4948 on 22/03/2023. During the course of transit due to excessive jerks and jolts and alleged mishandling by the transporter. Hence the consignee received the complete unit of Voltas water chiller machine damaged condition, due to which the consignee refused to accept the material. After which the consignee returned the same consignment to consignor place through vehicle no. GJ23Y8767 on 11/03/2023 and as well as the material reaches on 15/04/2023 at consignor premises at Waghodia (GJ).					

5	INLAND TRANSIT		From	To
a	Carrier	:	M/s. Yatayat Corporation India Pvt. Ltd.	Waghodia (GJ) Khamaria (MP)
B	Way Bill No.	:	LR No. 3963 dated 22/03/2023	
C	Truck/Wagon No-	:	GJ23X4948 return to GJ23Y8767	
D	Remarks at GR/RR/AWB	:	Remarks of damages endorsed on back of GR	
E	Wt. As per GR/RR/AWB	:	As per GR	
F	Total No- of Packages	:	03 Nos	
g	Dt. goods arrived at Destination	:	03/04/2023	Demurrages
h	Dt. Delivery taken	:	03/04/2023	Nil
i	Mode of transporter ex-transporter ex transporter's godown	:	Door delivery	
j	Dt. of arrival of goods at consignee godown	:	03/04/2023	

6	SURVEY DETAILS		
a	External condition of goods at the time of delivery from transporter	:	The consignment was received in damaged condition.
b	Recovery rights	:	On our request the insured lodged the "monetary claim" against transporter on dated 23/03/2023 and obtained the "certificate of fact" on dated 16/10/2023 and copy of the same attached. We requested them to submit the original of both directly to the insurer for recovery.

c	Dt. of Exam. of goods at final warehouse by consignee/consignor	: 15/04/2023
d	Date of application of Survey	: 03/04/2023
e	Date of appointment by insurers	: 03/04/2023
f	Date and place of survey	: On 03/04/2023 at consignee's place at Khamaria (MP and final on 17/04/2023 at consignor's place at Waghodia (GJ), after appointment and Confirmation.

7 ABOUT INSURED**Voltas Limited**

Voltas limited is an Indian company specializing in air conditioning and cooling technology. On 06 September 1954 Voltas Ltd. was incorporated in Mumbai, India. The company is jointly promoted by Switzerland's Volkart brothers and India's Tata Sons P. Ltd. The company is broadly structured into projects and product business. The project business is divided into domestic projects group and international operation business group. The Unitary Products business group manufacture products in categories including air conditioners, air coolers commercial refrigerators, water coolers and water dispensers. Voltas is the largest air-conditioning brand in India. Voltas produced India's first window air conditioner with DC-inverter-based variable-speed motors. Voltas also has a large network of repair centres. The firm is also a major producer of evaporative coolers, which are widely used for comfort cooling in arid and semi-arid climates.

Voltas has also entered into a joint venture with Turkey-based Arducth (a subsidiary of Arçelik, part of the Koç Group making the Beko brand of home appliances). It began producing refrigerators, air conditioners, washing machines and kitchen appliances under the name of Voltas Beko.

Voltas won the first prize in the category 'Manufacturers of BEE Star Labelled Appliances (Air Conditioner)' as part of the National Energy Conservation Awards 2015. The company had previously won the same award in December 2013.

8 OBSERVATIONS & ASSESSMENT REPORT**Survey on 03/04/2023 at consignee place at Khamaria (MP):**

Pursuant to instruction received from insurer vide mail dated 03/04/2023 we visited at consignee's place at Khamaria (MP) on same day. We met with their representative and discussed the matter with them. They stated that consignments of Voltas water chiller machine were dispatched from Waghodia (GJ) to Khamaria (MP) on 22/03/2023. The consignment had arrived at consignee place on 03/04/2023 in damaged condition during the course of transit due to Jerks and Jolts, hence the consignee refused to accept the material. So the material sent back to consignor's place at Waghodia (GJ) on 15/04/2023.

We took the photographs of the same which are enclosed herewith as evidence.



During survey we requested them to provide us the documents related to the consignment. They provided us the Invoice and GR copy related to the consignment. We tallied the consignment with the invoice and confirm the correct material for survey. The consignment has already been unloaded prior to our come at their premises and kept aside for the inspection. We physically checked all the Voltas water chiller machine one by one to ascertain the damage and found that the Voltas water chiller machine were in damaged condition. But actual loss of Voltas water chiller machine parts for repair could not be ascertained that time due to lack of service engineer report. After that we said them all the units will be checked one by one by concerned engineer then the exact quantity can be ascertained.

After which they said that this material is not acceptable to us, hence service engineer report of the damaged units will be provided by the insured as this material will be returned to the consignor place at Waghodia (GJ). We prepared the JIR duly signed and stamped with the consignee's representative.

Survey on 17/04/2023 at consignor place at Waghodia (GJ):

We were informed for survey when the consignment reached at consignor premises at Waghodia (GJ). We saw that the damaged unit of Voltas water chiller machine were lying at their premises. We physically checked the damaged unit to ascertain the damage and found that the Voltas water chiller machine were in damaged condition. But actual loss of Voltas water chiller machine parts for repair could be ascertained by service engineer report. After which we said them provide us service engineer report of water chiller machine so that the actual loss could be ascertain. But they did not provide the same that time and also said that they will provide for the same shortly.

Meanwhile they provided few photographs when the material reached at their premises which are enclosed herewith as evidence.

Photographs provided by insured



Photographs taken by us



Damaged Detail as under:

S. No	Invoice No.	Item Description	Serial number	Total pcs	Sound pcs	Damaged pcs
1	I22241036920	ACWCDS039IPMN3XIP-CHP Model: ACWCDS039IPMN3XIP	W230000902	1	0	1
			W230001002	1	0	1
			W230001102	1	0	1
Total				3	0	3

As per 'Carriage by Road Act-2007' the carrier is fully responsible for this loss to insured as the material got damaged while it was in the hands of the carrier.

However, we had given the various reminders to insured through LOR for submission of adequate documents along with service engineer report of damaged units. After long time the insured provided us the sufficient documents in which also they provide us quality inspection report of damaged units with serial number are as under:-

No.	Model No. ACWCDS039IPMN3X1P	Serial No. W230000902
1	Panel enclosure from bottom found crack-Enclosure needs to be replaced	
2	HMI & control transformer found loose, tilted-Need to be check during testing	
3	Liquoid line taper/bend,	
4	Suction line touches each other bend	
5	Cable tray cover missing	
6	Circuit 2nd Discharge line badly damaged, no gas inside	
7	Flow switch damaged/Screw came out	
8	Cable tray taper	
9	Circuit 3rd Discharge line badly damaged, no gas inside	
10	Insulation needs to be change & re-painting required	
No.	Model No. ACWCDS039IPMN3X1P	Serial No. W230001002
1	Panel enclosure from bottom found crack-Enclosure needs to be replaced	
2	Liquoid line taper/bend,	
3	Suction line touches each other bend	
4	Flow switch Screw came out	
5	Circuit 3rd Discharge pressure is too low	
6	Insulation needs to be change & re-painting required	
No.	Model No. ACWCDS039IPMN3X1P	Serial No. W230001102
1	Pressure switch damaged 2 numbers	
2	Liquoid line taper/bend,	
3	Suction line touches each other bend	
4	Cable tray taper	
5	Insulation needs to be change & re-painting required	

About Reinstated photographs and condition of water chiller machine

Later on, we asked them about the repair of water chiller machine after which they said that the water chiller machine has been repaired after that we asked them to provide us photographs of subjected machine after repaired. But they did not provided the same and also they said that the water chiller machine is running ok and sent it to plant.

Later on, they provided us claim bill as well detailed breakup of repaired amount of damaged item with serial number which are as under:-

PART CODE	ACWCDS039IPMN3X1P							
PART NO	DESC	QTY	UNIT PRICE	TOTAL	BILL NO	BILL DATE	VENDOR NAME	CODE
AC178100144	PRSS.REL.VLV 1/2"NPTX 300 PSI.	3 NOS	1,312	3,937	183/22-23	13-09-2022	SANLAN CONTROLS	604213
AC178511049M	Copper Tube Size :5/8"x20G , SOFT Stght	5.6 METERS	318	1,779	GCPL/22-23/155	20-01-2023	GLOBAL COPPER PRIVATE LIMIT	700486
AC178512029-R	Copper Tube Size : 1-3/8" X 16G , SOFT	4.5 METERS	1,256	5,652	GCPL/22-23/155	20-01-2023	GLOBAL COPPER PRIVATE LIMIT	700486
AC995311050	REFRIGERANT R407C	29 KG	490	14,210	MSI2223G-0995	29-08-2022	MPCL INDUSTRIES LTD	695122
ACINN13	INSULATION 1/2" NITRILE RUBBER CLASS-O	1 M2	167	167	3812/B2B/22-23	21-09-2022	Inner Engineering Products & Sy	701290
			TOTAL	25,744				
	WORK TYPE	NO OF PERSON	TIME	TOTAL(MANHOURS)	PER HOUR RATE	TOTAL RATE		
	REWORK (COMP REMOVAL & AND FITTING)	2	2	4	120.00	480.00		
	NEW SUCTION & DISCHARGE SETUP & BRAZIN	2	8	16	120.00	1,920.00		
	PRESSURE TESTING , VACCUMISING & GAS CHAR	2	4	8	120.00	960.00		
	INSULATION	2	1	2	120.00	240.00		
	WIRING	2	4	8	120.00	960.00		
	PAINTING & FINISHING	2	4	8	120.00	960.00		
	RUNTESING			8	120.00	960.00		
			TOTAL MANHOU	54		6,480.00		
			G TOTAL COST			32,224.10		

Note: Goods tallied with packing list of invoice. As well as we requested the insured to submit the repair bills of the damage parts directly to the insurer.

On the basis of our survey and documents collected, the loss assessment as per the claim bill provided by the insured is as follows:

Loss Assessment:

S. No	Invoice No.	Material Description	Invoiced			Loss by JIR	Claimed by repair bill	Assessed	Remark
			Total Qty.	Rate per item	Amount	Damage qty	Particulars	Repair/replace Amount (Rs)	
1	I22241036920	ACWCDS039IPMN3XIP- CHP Model:	3	6,75,000.00	Rs. 20,25,000.00	3	Damaged material & Labour cost	Rs. 32,224.00	Repaired/replaced
		ACWCDS039IPMN3XIP					Lifting/Shifting/Transportation Charges	Rs. 35,000.00	
		Total	3		Rs. 20,25,000.00	3		Rs. 67,224.00	
		Add: GST @ 18%			Rs. 3,64,500.00			Rs. -	Not applicable
		Total Invoice Amount			Rs. 23,89,500.00			Rs. 67,224.00	
		Add: CIF+10%			Rs. 2,38,950.00			Rs. -	Not applicable
		Gross loss			Rs. 26,28,450.00			Rs. 67,224.00	
		Less: Salvage						Rs. 5,200.00	
		Loss after salvage						Rs. 62,024.00	
		Less: Policy Excess 0.5% of consignment value subject to minimum of Rs. 7500/-						Rs. 13,142.25	
		Net payable amount						Rs. 48,881.75	

The insured has provided transportation/freight charges bill vide invoice no. INBRC2300176, dated 24/04/2023 from M/s Inland World Logistics Pvt. Ltd., hence we have allowed the same which are copy enclosed with the report.

Note: We have not allowed GST as the ITC can be claimed.

CIF: - As per Institute Replacement Clause (IRC) the actual loss of repair only allowed. Hence on 10% disallowed.

Salvage: The damaged item is Voltas water cooled scroll water chiller machine, subject to salvage. After which insured gave us salvage value of 5,200/- in the claim bill. Hence salvage value deducted in our loss assessment but not disposed by us. To be taken up as per company norms.

Declaration: -Marine cargo annual turnover open policy.

Consent: - NA

Warranty: - No breach of warranty noticed by us.

Recommendation: - The above loss in our opinion is most reasonable and subject to term and condition in force. The above loss falls under purview of the policy and is recommended for payment as above.

Documents enclosed are:

- Deputation mail to surveyor (**Annexure A**)
- Policy copy (**Annexure B**)
- Both JIR copy (**Annexure C**)
- Invoice Copy (**Annexure D**)
- GR Copy (**Annexure E**)
- Return Invoice, GR, & E-way bill (**Annexure F**)
- Quality Inspection (**Annexure G**)
- Claim bill with detail break up (**Annexure H**)
- transportation charges bill (**Annexure I**)
- Claim form (**Annexure J**)
- Certificate of fact (**Annexure K**)
- Monetary claim letter (**Annexure L**)
- Photographs taken by us (**Annexure M**)

Note:

Survey Fee has been billed to insurer.

V.P. Singhal & Co. ISLA Pvt. Ltd.

(Surveyors & Assessors)